PremFina

Private and Confidential Addressee Only

MR G. LEONARD
110 MILLBROOK GARDENS
CASTLEDERG
BT817DJ

15th August, 2023

Credit Agreement Number: 000319944
Broker Reference Number: 146153

Dear MR LEONARD,

YOUR PREMIUM FINANCE CREDIT AGREEMENT

Confirmation of Direct Debit Setup and Future Payment Schedule

Thank you for taking up your insurance policy with Todd Insurance and choosing to pay by monthly instalments. Todd Insurance has arranged the finance for your insurance and associated costs through PremFina Ltd ("We/Us").

Please note that this does not affect your insurance policy and if you have any queries or changes to make regarding the policy, you should continue to contact Todd Insurance or visit www.toddni.co.uk

We provide the finance for your insurance through a credit agreement. Please review all the documentation provided with this letter to ensure this is the right product for you. If you would like to proceed and pay for your insurance through monthly payments, please sign your credit agreement.

How do I sign my credit agreement?

The easiest way to sign your credit agreement is electronically. If we have a valid email address for your account, you will have received an email from us with a web-link and instructions on how to do this online. This process will only take you a few minutes. If we don't have a valid email, you will have received your documentation by post. Please review all the information overleaf and post a signed copy back to us if you would like to proceed.

Please note that our approval of your credit agreement is subject to you passing credit and financial crime checks. We will contact you in the unlikely event we have to withdraw the finance.

Advance Notice of Direct Debit issued by PremFina Ltd.

Your monthly payments will be collected by us on the dates shown on the repayment schedule below:

Payment Amount (£)	Due Date	Payment Amount (£)	Due Date
153.51	22-AUG-2023	153.50	16-JAN-2024
153.50	16-SEP-2023	153.50	16-FEB-2024
153.50	16-OCT-2023	153.50	16-MAR-2024
153.50	16-NOV-2023	153.50	16-APR-2024
153.50	16-DEC-2023	153.50	16-MAY-2024

PremFina

Please note that any instalments set out above that fall on non-banking days (weekends or bank holidays) will be collected on the next available working day.

If you want to change any of your scheduled payment dates or bank details, you should contact us at least 5 working days in advance. If you miss a payment outlined in the above schedule, a default charge of £27.50 will be applied as stipulated in the terms and conditions of your credit agreement.

Your Direct Debit Instruction details

Below are your bank details that we will use to collect your monthly instalments:

Account Name:	GERARD LEONARD
Sort Code:	980410
Account Number:	****3156

Please note that we have hidden some of your bank details to protect your security.

If you think any of the above details are incorrect, please contact us as soon as possible. You can do this via live chat on our website, www.premfina.com , as well as find other ways to get hold of us within the 'Contact' page.

For your information, the Direct Debit collections will be made using the reference below:

Service User Name:	PREMFINA LTD
Service User Number:	183697
Reference Number:	000319944

You have the right to cancel your Direct Debit Instruction at any time. However, if doing so leads to you missing one of your scheduled instalments, we may terminate your agreement if it is not brought up to date. This may affect the status of your underlying insurance policy. A copy of the Direct Debit Guarantee is contained within this letter.

Who do I contact?

If you have any queries relating to the credit agreement, want to change your details, or need to bring your account up to date, you can contact us via our website at www.premfina.com . You can also browse our Frequently Asked Questions section, which may answer any questions you have.

For any insurance policy related queries including cancellation/amendments, please visit www.toddni.co.uk for your options.

Yours sincerely

PremFina

PremFina Client Services

PremFina

The Direct Debit Guarantee

- This Guarantee is offered by all banks and building societies that accept instructions to pay Direct Debits.
- If there are any changes to the amount, date or frequency of your Direct Debit, PREMFINA LTD will notify you 3 working days in advance of your account being debited or as otherwise agreed. If you request PREMFINA LTD to collect a payment, confirmation of the amount and date will be given to you at the time of the request.
- If an error is made in the payment of your Direct Debit, by PREMFINA LTD or your bank or building society, you are entitled to a full and immediate refund of the amount paid from your bank or building society
  - If you receive a refund you are not entitled to, you must pay it back when PREMFINA LTD asks you to.
- You can cancel a Direct Debit at any time by simply contacting your bank or building society. Written confirmation may be required. Please also notify us.

PremFina.com
Tintagel House, 92 Albert Embankment,
Vauxhall, London, Uk, SE1 7TY

Registered in England and Wales #07208343
PremFina Limited is the lender and is authorised and regulated
by the Financial Conduct Authority, under Reference Number 724083.

Frequently Asked Questions

It is important that you read this document and all the information set out below so you can decide if the credit you are applying for to pay monthly for your insurance is appropriate to your needs and financial situation.

This explanation is not a substitute to reading the other documents provided; it just provides a general explanation of the Credit Agreement key features. Please read the full pre-contract information and credit agreement before signing if you wish to proceed.

1. What can this credit agreement be used for?

It is specifically designed for the repayment of insurance premiums and any associated costs and isn't suitable for any other use. If you wish to pay for the insurance policy premium upfront in one payment, this product is not suitable for you.

2. How much will the credit cost me?

The costs of the credit are set out in the Pre-Contract Credit Information and Credit Agreement document you have also received. This includes details of the repayments, any fees or charges, the total amount you will have to pay and the interest rate. The documents also show you the Annual Percentage Rate (APR), which may assist you in comparing the overall cost of credit. You should consider whether you can afford the monthly repayments, even if your circumstances change.

3. Are there any special features of the credit agreement that you need to be aware of?

When you sign the Credit Agreement you agree to be bound by the terms and conditions. This includes your agreement to assign to us all your rights, title and interest in the insurance policy. This means that we can use any money you would normally receive under those insurance policies such as premium refunds to repay all or part of the outstanding balance under the credit agreement.

You may be required to pay to us any shortfall between the amount refunded from your insurance policy and the outstanding balance due to us under your agreement. We may, if we have such arrangements with your broker or insurance provider, require your broker or insurance provider to pay us in full any amount equal to the outstanding balance including interest and any instalments due but unpaid. If we do so, you may be liable to pay that amount to your broker or insurance provider depending on the terms of their arrangements with you and they may contact you to recover the amount due.

We will usually pay a commission to your insurance broker for introducing the finance business to us.

If (i) you are a limited company or other body corporate (such as an LLP) or a partnership of 4 or more partners or (ii) the credit exceeds £25,000 and the agreement is entered into wholly or predominantly for business purposes, this Agreement is not regulated by the Consumer Credit Act 1974 ("the Act") and the rights, protections and provisions of the Act do not apply. You will not enjoy any rights of withdrawal and where we are required to give prior notice this need not comply with the terms of the Act.

4. What rights of withdrawal do I have?

You have the right to withdraw from this Agreement without giving a reason before the end of 14 days beginning with the day after the day you signed the Agreement. If you would like to withdraw from the agreement, you can contact us via email and live chat through www.premfina.com. If you exercise your right to withdraw, you must repay us without delay and no later than 30 calendar days after giving notice of withdrawal, the credit and any interest which has accrued from the date the credit is advanced until the date it is repaid.

5. What happens if I can't keep up with my repayments?

If you fail to make a minimum monthly payment, we will charge you a default fee. This fee is set out in the Pre-Contract Credit Information and your Credit Agreement. We will collect this fee at the same time as the missed payment. In addition, your Credit Agreement may be cancelled which could result in you being charged a cancellation fee, details of which are set out in the Pre-Contract Credit Information and your Credit Agreement. Your insurance policy may also be cancelled. You will have to pay us back any money you owe.

We may pass details of any missed payments to credit reference agencies. This could impact your credit rating which could also make access to credit more difficult and the cost of credit more expensive in the future. We may also refer the debt to a debt collection agency and bring legal proceedings to recover the amounts we are owed.

6. What if I have some questions?

If you have any questions or would like some more information and explanation, you can contact us via email and live chat through www.premfina.com.

PRE-CONTRACT CREDIT INFORMATION

1. Contact Details

Creditor. Address. Telephone number. E-mail address. Fax number. Web address.	PremFina Ltd Tintagel House, 92 Albert Embankment, Vauxhall, London, Uk, SE1 7TY 0330 165 9367 info@premfina.com www.premfina.com
Credit intermediary. Address. Telephone number. E-mail address. Fax number. Web address.	Todd Insurance 10 Prospect Court Fermanagh And Omagh Omagh County Tyrone BT78 1AR 028 8224 5333 admin@toddni.co.uk www.toddni.co.uk

2. Key Features of the Credit Product

The type of credit.	**Running Account Credit Agreement.** Running account credit agreement for financing the premium payable for Insurance and any additional insurance products.
The total amount of credit. This means the amount of credit to be provided under the proposed credit Agreement or the credit limit.	There is no credit limit on this Agreement but we may introduce such credit limit as we from time to time in accordance with our arrangements with them to reflect the cumulative total premiums of all the insurance products and other services financed using this facility (along with interest and charges debited to it) and give 7 days written notice to you.
How and when credit would be provided.	Payment will be made to the Credit Intermediary for your insurance products from time to time in accordance with our arrangements with them to reflect any drawings you make under this Agreement.
The duration of the credit agreement.	The Agreement has no fixed or minimum duration.
Repayments.	We will determine the minimum monthly payment needed based on the total advanced under this Agreement, together with any associated interest and charges, in order to clear the balance before the expiry of the last insurance policy financed from time to time under this Agreement. Whenever a premium is financed we will write to tell you what the minimum monthly payment is and the dates when it is due.
The total amount you will have to pay. This means the amount you have borrowed plus interest and other costs.	Based on the same assumptions used to calculate the APR, that is, credit of £1,200 is drawn down immediately and in full and that repayment of the credit, the interest and charges is made by 12 equal monthly instalments, the total amount payable would be £1,320. The actual amount you have to repay may vary depending on the amount drawn.
Security required. This is a description of the security to be provided by you in relation to the credit agreement.	As security for the payment of all outstanding balances under this Agreement you assign to us with full title guarantee, by way of continuing security, all your rights, title and interest in and to the Policy/ies financed, any sums payable to you under the Policy/ies, and any rebate or reimbursement of insurance premiums to which you may become entitled.

3. Costs of the Credit

The rates of interest which apply to the credit agreement.	Flat rate of interest: 13.5% per annum. We can vary the flat rate of interest applied to your account in accordance with the Agreement to reflect changes in the cost of providing services to you. We will notify you in writing of any change at least 21 days before it takes effect and your monthly payments will change from the first monthly payment after the change takes effect.
Annual Percentage Rate of Charge (APR). This is the total expressed as an annual percentage of the total amount of credit. The APR is there to help you compare different offers	The APR is 36.76% variable. The APR has been calculated on the assumption that credit of £1,200 is drawn down immediately and in full and that repayment of the credit, the interest and any other charges is made by 12 equal monthly instalments. This is for comparative purposes only, and may vary from actual drawings under this Agreement so that a different amount drawn may increase or decrease the APR.
Any other costs deriving from the credit agreement	We may impose reasonable fees and charges to cover our administration costs arising out of your request for any document to which you are not legally entitled. We will notify you in writing of any other charges in force from time to time.
Conditions under which the above costs can be changed	You will be notified in advance in writing. These may include any of, non-receipt of signed credit agreement fee of £0 or default fee of £27.50 or mid-term adjustment fee of £0 or termination fee of £0 or an administration fee of £0, as appropriate.
Costs in the case of late payments:	£27.50 per default (i.e. Direct Debit request being returned unpaid) £0 per termination (i.e. if you miss a payment your loan may be terminated). We reserve the right to apply interest at the contractual rate on amounts unpaid until payment is received.
Consequences of missing payments.	Missing payments could have serious consequences. If you fail to make any repayment by its due date then, in addition to any other rights we may have, interest will continue to be charged on the outstanding balance at the contractual rate both before and after any judgment we may obtain. We may also charge you £27.50 for each missed or declined payment. We may terminate the agreement, charge you a termination fee as set out above and require you to pay all sums payable under the agreement early. Adverse information may be passed to credit reference agencies, which could impact your credit rating and could also make access to credit more difficult and the cost of credit more expensive in the future. We may also bring legal proceedings to recover the amounts we are owed, including for example, bankruptcy proceedings. If we obtain a judgment against you, we may seek to enforce that judgment, for example, by obtaining a charging order against your home meaning your home may be repossessed. Further legal costs, including court costs, may become due as a result of your breach of this agreement. We may enforce any security given by you under the agreement by cancelling the Policy and use any refund of premium towards payment of the outstanding balance.

PRE-CONTRACT CREDIT INFORMATION

4. Other Important Legal Aspects

Right of withdrawal.	You have the right to withdraw from this Agreement without giving a reason before the end of 14 days beginning with the day after the day you signed the agreement. If you wish to exercise your right to withdraw, you must notify us orally on 0330 165 9367 or in writing at our address above.
Early repayment.	You have the right to repay the credit early at any time in full or partially.
Consultation with a Credit Reference Agency.	Your personal data will be used by PremFina to contact a credit reference agency (CRA) in order to get information on your credit behaviour with other organisations. Information provided by the CRA will help PremFina make an assessment of your overall situation before a credit decision is made. We will inform you immediately and without charge if we decide not to proceed with your consumer credit agreement on the basis of information from a CRA and we will tell you that our decision is based on information received from a CRA. Please refer to our Privacy Policy, which can be found at www.premfina.com.
Exchange of information with a Credit Reference Agency.	Where you borrow from PremFina, details of your credit facility and how you manage it will be given to the CRA by PremFina and recorded by them. If you borrow and do not repay in full and on time, the CRA will record the outstanding debt. This information may be supplied to other organisations by the CRA and FPA to perform similar checks and to trace your whereabouts and recover debts that you owe. Records are retained for 6 years after your account is closed, whether settled by you or defaulted.
Right to a draft credit agreement	You have a right to receive, upon request, a copy of the draft credit agreement free of charge, unless we are unwilling at the time of the request to proceed to the conclusion of the credit agreement.
The period of time during which the creditor is bound by the pre-contractual information.	One month from the date this pre-contract credit information is issued.

5. Additional information in the case of distance marketing of financial services

a) Concerning the creditor	
Registration Number	Firm Reference Number: 724083 Companies House Registration number: 07208343
The supervisory authority	Financial Conduct Authority
b) Concerning the credit agreement	
The law taken by the creditor as a basis for the establishment of relations with you before the conclusion of the credit agreement	English law
The law applicable to the credit agreement and/or the competent court	English law governs this Agreement and the English courts will determine any dispute in relation to this Agreement unless you are resident in Scotland or Northern Ireland in which case the courts of the Country in which you are resident will determine any such dispute.
Language to be used in connection with your credit agreement	The credit agreement and all communications will be in English for the duration of this agreement.
c) Concerning redress Access to out-of-court complaint and redress mechanism.	Any complaint should be addressed to PremFina in the first instance, using the contact details shown above and you should provide us with full details of the nature of your complaint. If you are not entering into this Agreement in the course of a business, you have the right to complain to the Financial Ombudsman Service by telephone on 0300 123 9 123 or 0800 023 4567 or by email at complaint.info@financial-ombudsman.org.co.uk or by post at Exchange Tower, London E14 9SR. If you are entering into this Agreement in the course of a business, you may have a right to complain to the Financial Ombudsman Service.

Credit Agreement regulated by the Consumer Credit Act 1974

PremFina

Running account facility for financing the premiums payable for insurance products.
Credit Agreement, between Creditor ("we/us") and Customer ("you/your"), with Reference Number: 000319944

Creditor: PremFina Ltd Tintagel House, 92 Albert Embankment, Vauxhall, London, Uk, SE1 7TY

Customer:

Name (Include trading name): MR GERARD LEONARD
Address: 110 MILLBROOK GARDENS, CASTLEDERG,
Post Code: BT817DJ
Date of Birth (if applicable) DD-MM-YYYY: 17-JUN-1988
Company Registration Number (if applicable):
Home Tel: 07762382491
Mobile: 07762382491
Email: GERARDLEONARD17@GMAIL.COM

Broker (details of Customer's Credit Intermediary and Insurance Broker):

Broker Name: Todd Insurance
Broker Reference Number: 146153
Broker Address: 10 Prospect Court Fermanagh And Omagh Omagh County Tyrone BT78 1AR

This Agreement has no fixed or minimum duration.
There is no credit limit under this Agreement, but we may introduce such credit limit as we determine from time to time by giving you 7 days prior written notice.

Payments and Repayments

We will determine the minimum monthly payment which will be enough to repay the outstanding balance before the expiry of the latest Policy/ies financed from time to time under this agreement. Whenever a Policy is financed under this agreement, we will write to tell you what the new cumulative total for the amount of Policy insurance premiums financed under this Agreement is and what the minimum monthly payment is and the dates when it is due in order to clear the outstanding balance before the latest Policy's expiry.

For your first drawing, the details are as follows: First drawing amount (Policy/ies Price):	£1,352.43
Repayable by first payment due on 22-AUG-2023 , for the amount of:	£153.51
Followed by 9 equal payments of:	£153.50

The 9 repayments must be made monthly on the same day of each month commencing on 16-SEP-2023 unless there is no corresponding day in such month whereby the repayment day will be the nearest preceding banking day to that date.

Monthly payments will vary when the interest rate varies and/or the amount of any Policy/ies financed under this Agreement varies the outstanding balance of your account. We will notify you of the revised amounts at that time.

Total amount payable for the first drawing under this Agreement:	£1,535.01

Interests and Charges

We apply a flat rate interest charge on the amount of any drawing made under this Agreement and then debit this to the account when a drawing is made.

The annual flat rate interest charged based on the first drawing under this Agreement is:	13.5%

We can vary the flat rate of interest applied to your account to reflect changes in the cost of providing services to you or other factors set out in clause 5.3. We will not increase the Interest Rate under this clause unless you are applying for a new drawing. You will be notified of any change to the interest rate before a new drawing and your monthly payments will change from the first monthly payment after the change takes effect. Interest is calculated by applying the rate of interest to the drawing when it is made. In calculating the APR, no account has been taken of any variation which may occur under this Agreement in the rate of interest.

The APR of 36.76% (variable) has been calculated on the assumption that credit of £1,200 is drawn down immediately and in full and that repayment of the credit, the interest and any other charges is made by 12 equal monthly instalments. Based on these assumptions the total amount payable would be £. The dates and amounts of payments assumed to calculate the APR and the total amount payable may not be the same as the dates and amounts of payments that apply to actual drawings under this Agreement so that, for example, a different amount drawn may either increase or decrease the APR.

We may impose a fee of £0 to cover administration costs arising out of administering the loan and your request for any document to which you are not legally entitled. We will notify you in writing of any other charges in force from time to time. We may also charge a mid-term adjustment fee of £0 where a funded Policy is varied mid-term . We reserve the right to vary any fees and charges under this Agreement in accordance with clause 5.3. We reserve the right to apply interest at the contractual rate on amounts unpaid until payment is received.

Security

As security for the payment of all outstanding balances under this Agreement you assign to us with full title guarantee, by way of continuing security, all your rights, title and interest in and to the Policy, any sums payable to you under the Policy, and any rebate or reimbursement of insurance premiums to which you may become entitled. We will reassign the Policy to you once the outstanding balance has been discharged. We shall be entitled to notify the insurers of the assignment and have our interest noted on the Policy (see clause 3.2).

Payment Defaults and Associated Charges

Monthly payments must be made by you by direct debit on each payment date unless we agree otherwise. You will be liable to pay us for any costs, charges and expenses that we may incur or have to pay to a third party including legal costs which arise out of your breach of or default under this Agreement. Interest will be charged on unpaid amounts at their current interest rate, both before and after we obtain any judgment. In addition a default fee of £27.50 is payable for each failed attempt we may make to collect an instalment due under this agreement (i.e. a direct debit request is returned unpaid for any reason). A termination fee of £0 is payable if we terminate this Agreement as a result of such non-payment. We reserve the right to vary the amount of these fees under Clause 5.3 overleaf.

Early Payment

You have the right to repay all amounts owed to us early in full or in part. If you wish to repay early, you must notify us of your intention to do so and, in the case of an early repayment in part, make such payment within 28 days of the day following our receipt of your notice or on or before any later date specified in your notice. Such early repayment shall be made by bank transfer, cheque, debit or credit card. At our discretion we may allow you a rebate on the amount of interest applied to reflect early termination but we are not obliged to do so.

Right to Withdraw

You have the right to withdraw from this Agreement without giving a reason before the end of 14 days beginning with the day after the day you signed the Agreement. If you wish to exercise your right to withdraw, you must notify us orally on 0330 165 9367 or in writing at our address above. If you exercise your right to withdraw, you must repay without delay and no later than 30 calendar days of giving notice of withdrawal, the credit and any interest which has accrued from the date the credit is advanced until the date it is repaid. Where credit is drawn down during the withdrawal period, we shall inform you, on request, without delay, of the amount of interest payable per day. Such repayment shall be made by cheque, debit or credit card.

You may have the right to sue us, the Insurer(s) or both if you have received unsatisfactory goods or services paid for under this Agreement costing more than £100 and not more than £30,000.

MISSING PAYMENTS:

Missing payments could have serious consequences. If you fail to make any repayment by its due date then, in addition to any other rights we may have, interest will continue to be charged on the outstanding balance at the contractual rate both before and after any judgment we may obtain. We may also charge you £27.50 for each missed or declined payment. We may terminate the agreement, charge you a termination fee as set out above and require you to pay all sums payable under the agreement early. Adverse information may be passed to credit reference agencies, which could impact your credit rating and could also make access to credit more difficult and the cost of credit more expensive in the future. We may also bring legal proceedings to recover the amounts we are owed, including for example, bankruptcy proceedings. If we obtain a judgment against you, we may seek to enforce that judgment, for example, by obtaining a charging order against your home meaning your home may be repossessed. Further legal costs, including court costs, may become due as a result of your breach of this agreement. We may enforce any security given by you under the agreement by cancelling the Policy and use any refund of premium towards payment of the outstanding balance.

v1.3

Customer declaration and data protection	Customer acknowledgements
By entering into this Agreement I understand and agree that: a) The information given by me and contained in this Agreement is true and correct; b) My personal data (such as Full Name, Address and Date of Birth) will be supplied by PremFina to credit reference and fraud prevention agencies in order to get information on my credit behaviour with other organisations. Affordability indicators, credit reference and identity checks provided by the credit reference agencies will help PremFina make an assessment of my overall situation before credit decisions are made. Premfina will also share account information with credit reference agencies on an ongoing basis and this information may be shared by the credit reference agencies with other organisations. In return, PremFina will receive: • Credit Information (such as previous applications) and the conduct of the accounts in my name; • Public information such as County Court Judgements and bankruptcies; • Electoral Register information; • Fraud prevention information. c) I have read and understand the data protection notice overleaf at the end of the Agreement and am aware that if I would like to know more about the way in which my personal data is processed that I should read the PremFina Privacy Policy ("Privacy Policy") set out at www.premfina.com, or that I can write to PremFina at the following address to obtain further information; PremFina Ltd, Attn: Compliance, Tintagel House, 92 Albert Embankment, Vauxhall, London, Uk, SE1 7TY d) PremFina would like to send you details of our other products and services by e-mail, SMS, phone and/or post. If you wish to receive such details from us, please tick here [ ]; e) PremFina would also like to share your details with members of our group and/or with our trusted partners so that they may contact you in relation to products and services that may be of interest to you, either by e-mail, SMS, phone and/or post. If you wish us to share your details in this instance, please tick here [ ]; f) By signing this Agreement, I am accepting that my personal data may be used as set out in this Agreement, or as otherwise stated in the PremFina Privacy Policy; g) Where the customer is a partnership or company the signatory confirms that he/she is an authorised signatory.	a) These are our standard terms on which we intend to rely. The terms and conditions set out overleaf are part of this Agreement. You should read this Agreement carefully before signing it, together with any other documentation we have provided you with. If you do not understand anything please ask for further information or seek independent advice. b) If we do not receive a signed copy of this Agreement back from you, or satisfactory confirmation that you have signed it, we are not obliged to make finance available to you (see clause 14.2). Any insurance policy that was to be financed under this Agreement may be at risk of being cancelled. c) Even if you do not sign and return a copy of this Agreement to us or confirm that you have done so, we will regard you as having accepted our offer to provide credit to you on the terms set out in this Agreement if you permit the first minimum monthly payment under this facility to be collected from your bank account under the Direct Debit instruction that you have provided to us.

As required by the Consumer Credit Act 1974 we enclose two copies of your Credit Agreement. Please sign a copy and return to your broker or us and keep the other copy in a safe place (see clause 14.2).

Notwithstanding the statement above, this Agreement will not be regulated by the Consumer Credit Act 1974 if (i) you are a limited company or other body corporate (such as an LLP) or a partnership of 4 or more partners or (ii) the credit exceeds £25,000 and the Agreement is entered into wholly or predominantly for business purposes. This means that the protection and provisions under the Consumer Credit Act 1974 shall not apply (see clause 7).

This is a Credit Agreement regulated by the Consumer Credit Act 1974. Sign it only if you want to be bound by its terms.

Signature(s) of the Customer:	Date:

Signed for and on behalf of PremFina.	
Signature: PremFina	Date: 15th August, 2023

Terms of Agreement

1. Payments

1.1 You agree to make monthly payments as detailed overleaf by direct debit by their due date. You may pay more than the monthly payment at any time.

1.2 All payments (other than payments made to close the account) shall be made by direct debit from a bank or building society account notified by you to us authorising your bank or building society ("Bank") to accept debits from ourselves for varying amounts in respect of your account with us. If you do not pay any instalment on its due date, we may attempt to debit that payment at a later date after giving you notice. If that later payment attempt fails, we may charge you a further default fee for that failed payment attempt. This means you may incur more than one default fee in any month.

1.3 In addition to the charges set out overleaf you agree to pay to us on demand our reasonable fees and charges to cover our administration costs arising out of your request for any document to which you are not legally entitled. We will notify you in writing of any other charges in force from time to time.

2. Making drawings

2.1 You can use the credit facility under this Agreement to finance insurance products (a "Policy") and related services through intermediaries and insurers with whom we have a trading relationship. After financing the original Policy, you can (subject to the terms of this Agreement) request to finance adjustments and renewals under this Agreement.

2.2 You request us, for any drawing under this Agreement, to advance the funds to meet the cost of the premium for such Policies to you by paying them directly to the intermediary or the insurer in accordance with the terms of our arrangements with them.

2.3 Further drawings can only be requested by your broker who you irrevocably authorise for this purpose to act on your behalf. In addition to our rights to cancel or suspend the facility under clause 10.3 and 10.4, we may also decline to finance a Policy and allow a drawing if:

a) acting reasonably, we consider or suspect that the intermediary making the request for finance is not acting on your instructions;

b) we are aware that you have withdrawn your authority for the Intermediary to act on your behalf;

c) we have terminated our agreement with the intermediary making the request or as applicable with the insurer;

d) you are in default or otherwise in breach of the provisions of this Agreement;

e) acting as a prudent lender we reasonably consider your creditworthiness to be unsatisfactory having regard to your circumstances and/or the amount of credit required.

3. Default

3.1 If:

(i) you fail to make a monthly payment within 14 days of the due date of payment, or

(ii) you otherwise breach these terms and conditions in any material way, or

(iii) you cancel your direct debit without our agreement (for example where you are changing banks, will be setting up a new direct debit, and have told us about this first and we have agreed the changeover), or

(iv) you are unable to pay your debts as they fall due, or

(v) in the event of your bankruptcy or your entry into an individual voluntary arrangement or proposal with your creditors or,

(vi) if you are a company, a resolution is passed or steps are taken for its dissolution, winding up, receivership, entry into a company voluntary arrangement or proposal with creditors or administration,

Then we may (subject, where the Act applies, to first sending you a default notice) terminate this Agreement and require you immediately to pay to us the outstanding balance and (without prejudice to our other rights) may exercise our rights under clause 3.2. At our discretion, we may allow you a rebate on the amount of interest applied to reflect early termination but we are not obliged to do so.

3.2 When clause 3.1 or clause 4 applies, we shall notify the insurer of termination or the ending of this Agreement. You acknowledge and agree that we shall be entitled to ask the insurers, on your behalf, to cancel the insurance Policies and recover any balances from you and you consent to the assignment to us of all rights which we may have to recover such items and to pay to us any rebate or reimbursement of insurance premiums, towards reduction of the outstanding balance.

3.3 We may, if we have such arrangements with your broker or insurance provider, require your broker or insurance provider to pay us in full any amount equal to the outstanding balance including interest and any instalments due but unpaid. If we do so, you may be liable to pay that amount to your broker or insurance provider depending on the terms of their arrangements with you and they may contact you to recover the amount due.

4. Your Right To End This Agreement

4.1 You may end this Agreement at any time by written notice to us. If you end this Agreement you must immediately pay to us any outstanding balance and if you fail to do so we may notify the insurer of the ending of this Agreement and instruct the insurer in accordance with clause 3.2. At our discretion, we may allow you a rebate on the amount of interest applied to reflect early termination but we are not obliged to do so.

5. Variation

5.1 We may, by giving you at least 10 days' notice in writing or in such other manner as may be permitted by law, vary the monthly payment to take account of any rebate or reimbursement of insurance premium or any fees, costs, charges or expenses incurred under this Agreement so as to achieve repayment of the outstanding balance by the remaining monthly payment.

5.2 We may vary any of the terms of this Agreement in a proportionate manner to reflect any renewals or changes to the Policies or the addition of Policies or adjustment to Policies. Any variation will be notified to you in writing and sent to you by post or email.

5.3 Other than as set out above in this clause 5, we may vary the terms of this Agreement for any good reason (including those set out below) at any time by giving you 7 days' notice in writing:

a) changes in the cost of providing or administering the service;

b) changes to law, regulation, business or market practice or other external factors that may affect you;

c) changes needed to operate our business in a profitable and prudent manner;

d) changes to the overall mix of fees or charges applied.

Any variation will be proportionate to the reason(s) for making it.

5.4 We will not increase the interest rate under this clause unless you are applying for a new drawing of credit under the Agreement.

6. Account

6.1 We will set up an account in your name to reflect the outstanding balance under this Agreement which consists of the cumulative total value of all the Policies financed using this facility and any interest fees, costs, charges and expenses debited to your account, as well as any monthly payments and other amount credited to your account.

7. When The Act Does Not Apply

7.1 If (i) you are a limited company or or other body corporate (such as an LLP) or a partnerhship of 4 or more partners or (ii) the credit exceeds £25,000.00 and the agreement is entered into wholly or predominantly for business purposes, this Agreement is not regulated by the Act and the right, protections and provisions of the Act set out or referred to in this Agreement do not apply. You will not enjoy any rights of withdrawal and where we are required to give prior notice this need not comply with the terms of the Act nor the regulations made under the Act.

8. Notices

8.1 We may send any statement, notice, document or other correspondence under this Agreement to your postal or email address (for example, notices in electronic format such as Microsoft word or pdf) stated overleaf or any other postal or email address notified by you. You agree immediately to notify us in writing of any change of your postal or email address.

9. Law and Jurisdiction

9.1 English law governs this Agreement and the English courts will determine any dispute in relation to this Agreement unless you are resident in Scotland or Northern Ireland in which case the courts of the Country in which you are resident will determine any such dispute.

9.2 As a consumer you may benefit from any mandatory provisions of the law of the country in which you are resident. Nothing in these terms and conditions, including this clause 9, affect your rights as a consumer to rely on such mandatory provisions of local law.

10. Cancellation of Policies And Services

10.1 In the event that:

a) the Bank rejects your direct debit mandate; or

b) any 2 consecutive direct payments (whether in respect of one or more monthly payments) are recalled by the Bank; or

c) the direct debit mandate is cancelled or becomes ineffective for any other reason;

Then without limiting our other rights you irrevocably instruct us to notify the insurer and your broker of such event and, in our sole discretion, to request on your behalf the cancellation of the Policies and/or ancillary services which were paid for with credit provided on the account.

10.2 If the Policy/ies for which credit has been provided under this Agreement is/are cancelled, has/have expired on or is/are not issued, we may terminate this Agreement subject to giving you any notice required by law. On termination of this Agreement the outstanding balance and any other sums due under it will become immediately due and payable. At our discretion we may allow you a rebate on the amount of interest applied to reflect early termination but we are not obliged to do so.

10.3 We may at any time, on giving two months notice to you, terminate this Agreement in which case any outstanding balance and any other sums due under it will become due and payable on or by such termination date. At our discretion we may allow you a rebate on the amount of interest applied to reflect early termination but we are not obliged to do so.

10.4 We may suspend or terminate your right to draw further credit under this Agreement subject to complying with our statutory obligations by serving notice on you before or, if not practicable, immediately afterwards giving you the reasons for the termination or suspension (where we can lawfully do so).

11. The Policies

11.1 By signing this Agreement, you hereby charge the Policy to us by way of fixed charge, together with any amounts from time to time payable to you under or in connection with the Policy or the ancillary services relating thereto including, without limitation, any rebate or refund of premium on termination of the Policy (the "Proceeds"). Such charge shall be a continuing security for the payment and discharge of all monies and liabilities forming the outstanding balance, whether actual or contingent, from time to time owing by you in connection with the account.

11.2 You acknowledge that the Policy will only be entered into on the basis that your rights under the Policy will, from the outset, be subject to our prior charge.

11.3 You have not, and will not, attempt to dispose of, or create any other interest in the Policy.

11.4 You irrevocably authorise us, by way of security, to:

a) instruct the insurer and/or underwriter of the Policy (the "Insurer(s)") to pay the proceeds to us and to give a good discharge for all Proceeds; (and apply them against the outstanding balance); and

b) notify the Insurer of our interest in the Proceeds and our right to terminate the Policy.

11.5 You will notify us promptly if you vary or terminate the Policy.

11.6 Unless and until we notify you otherwise, you will keep the Policy in your possession.

12. Liability

12.1 We shall not be liable for any refusal by the insurer to insure you, nor shall we be liable for any failure to carry out any of our obligations under this agreement caused by any circumstances beyond our control. In the case of any claim by you for misrepresentation or breach of contract by the insurer in respect of insurance paid for hereunder you may have a claim against us under statute, but apart from that, no claim by you against the insurer may be the subject of a set-off or counterclaim against us.

Terms of Agreement

13. General

13.1 Any notice given to you hereunder by us shall be deemed to be correctly served if sent to you by pre-paid post to your last known address or the email address you have provided.

13.2 We may transfer in whole or in part our rights under this Agreement and/or any amounts owing on the account, but no such transfer will affect any rights you may have against the insurer or us or have the effect of varying the terms of payment or any provision of this Agreement to your detriment. You may not transfer any of your rights or obligations under this Agreement.

13.3 Any temporary waiver or indulgence by us in exercising our rights under this Agreement shall not prevent us from subsequently exercising our rights in full.

13.4 Singular words shall include the plural and vice versa.

13.5 The Financial Conduct Authority (12 Endeavour Square, London, E20 1JN) is the supervisory authority under the Act.

13.6 If you have any complaint arising out of this Agreement you may contact our complaints department. If you are not entering into this Agreement in the course of a business, you have the right to complain to the Financial Ombudsman Service. If you are entering into this Agreement in the course of a business, you may have a right to complain to the Financial Ombudsman Service. Please refer to www.financial-ombudsman.org.uk

13.7 All information and documents supplied to you, and communications with you, in respect of this Agreement will be in the English language.

13.8 A request to us by your broker for a policy to be varied or a new policy to be added to the Agreement shall be treated as a request made by you. We will pay remuneration (including commission) to your broker for introducing you to us and this may mean that they are unable to give you unbiased advice.

14. Duration

14.1 Our offer to open an account contained in this Agreement is conditional upon the completed Agreement, Direct Debit instruction and any requested identification documentation being received by us within 7 days of request or the Inception/Renewal Date whichever is later.

14.2 This Agreement is made when it has been signed by your broker or us and signed and dated by you but we are not obliged to make finance available to you until we have all required documentation, an authorised account number and the Agreement is returned to your broker or us together with a valid completed Direct Debit instruction. If we withdraw our offer to provide credit, any amounts paid by us to the broker will be held by the broker on our behalf and you authorise us to repay any interest and charges that we have collected from you to the broker on your behalf.

14.3 This Agreement is valid until such time as terminated by us or you, as per these terms.

15. Definitions and Interpretation

15.1 In the interpretation of this Agreement, unless the context otherwise requires; "account" means the account referred to in clause 6; "Act" means the Consumer Credit Act 1974 as amended or re-enacted from time to time; "insurance inception date" means the earliest commencement date of any of the insurances financed under this Agreement, as notified to you in writing; "insurance premiums" are the premiums inclusive of Insurance Premium Tax; "interest rate" means the flat rate of interest set out in this Agreement (as varied under clause 5); "monthly payment" means a monthly payment in the amount stated overleaf, as varied by us from time to time; "outstanding balance" means the total of all the insurance premiums of the Policies (and related services) financed together with interest, fees, costs, charges and expenses incurred by you to us under this Agreement; "overleaf" means the reverse side, or, if there is no reverse side, the attached or accompanying page; "we", "our" or "us"includes our successors and assigns; "working day" means a day when the banks are generally open for business in the City of London. In Scotland, words and expressions shall bear their nearest equivalent meanings.

15.2 Headings are for convenience only and shall not affect the interpretation of any provision.

15.3 Words and expressions to which means have been given overleaf shall bear those means in these terms and conditions and words in the singular shall include the plural, and the reverse.

15.4 If any provision of this Agreement is found to be illegal or unenforceable, it shall be deemed to be severable from, and shall not effect, the remaining provisions.

Data Protection Notice

YOUR INFORMATION:

1 For the purposes of the Data Protection Legislation, PremFina is the Data Controller.

2 For PremFina to make its decision whether or not to provide credit, before entering into this agreement, we will use your personal data to conduct affordability assessments, credit reference and fraud prevention checks. As such, your personal data will be provided to certain credit reference agencies ("CRA") and fraud prevention agencies ("FPA") to conduct these checks. Once provided to the CRA and FPA, some of your personal data will continue to be held and processed by those agencies in their capacity as Data Controller and to facilitate any future credit reference and/or fraud prevention checks.

3 You should be aware that information held about you by credit reference agencies may be linked to records relating to any person with whom you are linked financially and other members of your household.

4 When information is provided to the CRA and the FPA, a search "footprint" will be placed on your credit file whether or not this application proceeds. This means that the record of that search may be seen by other organisations when you apply for credit in the future. This is necessary for future CRA and FPA searches and for the prevention and detection of fraud.

5 Where you borrow from PremFina, details of your credit facility and how you manage it will be given to the CRA by PremFina and recorded by them. If you borrow and do not repay in full and on time, the CRA will record the outstanding debt. This information may be supplied to other organisations by the CRA and FPA to perform similar checks and to trace your whereabouts and recover debts that you owe. Records are retained for 6 years after your account is closed, whether settled by you or defaulted.

6 Please also be aware that if false or inaccurate information is provided by you and fraud is identified, the relevant details may be passed to FPA and also law enforcement agencies, who may use that information accordingly. In addition, your personal details may be used by PremFina and other organisations (including members of our group) to prevent crime, including fraud and money laundering. As such, your personal data may be transferred to relevant parties in jurisdictions outside the European Economic Area and/or we may receive personal data about you from other jurisdictions.

7 If you would like to know more about the CRA and FPA used by us, please read the PremFina Privacy Policy set out at www.premfina.com or write to us at the following address: PremFina Ltd, Attn: Compliance, Tintagel House, 92 Albert Embankment, Vauxhall, London, Uk, SE1 7TY. You will then be able to contact those agencies directly to obtain further information from them in relation to their processing of your personal data.

8 We may disclose your personal data to any funder in order to enable funders to assess the value of our assets. We may also use your personal data in order to administer this Agreement with you, as well as for any communications, marketing, complaints handling, debt recovery, exercise of any legal rights which we may have, as otherwise in compliance with all Data Protection Legislation, and/or as set out in our Privacy Policy.

9 We may give information about you and the conduct of your account to credit reference agencies, any broker, agent or administrator acting on our behalf, the insurers, debt collecting agencies and any proposed successor or assign and any proposed assignee, transferee or charge of this agreement or of our interest in this agreement, their insurers and advisors.

10 We will use automated decision-making system and will monitor and record telephone calls for the purpose of security, quality and training.

11 Further information about how we process your personal data can be found in our Privacy Policy, which can be found at www.premfina.com. Alternatively you can write to us at the above address to be provided with further information.